

## Week 2: The Medieval World 900 to 1400

### Essential Readings:

- The 'Feudal Revolution Debate' by Timothy Reuter and Chris Wickham versus Thomas Bisson, in Past and Present (1994, 1997)
- Brandt, L., Ma, D. and Rawski, T.G., 2014. From divergence to convergence: reevaluating the history behind China's economic boom. American Economic Journal: Journal of Economic Literature, 52(1), pp.45-123. Read the first half of this article and the conclusion.
- Benjamin Kedar and Merry Wiesner-Hanks, The Cambridge World History, vol. 5 (Introduction Chapter) Expanding Webs of Exchange and Commerce, 500-1500 CE (Cambridge, 2015)
- Sarris, P. (2004). The origins of the manorial economy: new insights from late antiquity. The English Historical Review, 119(481), 279-311.

### Additional Readings

- Sarris, P., 2011. Empires of faith: the fall of Rome to the rise of Islam, 500-700. OUP Oxford. (Read the Introduction)
- Eaton, R. M. (2019). India in the Persianate Age: 1000–1765. University of California Press.
- Goldberg, J. (2012). Trade and institutions in the medieval Mediterranean: The Geniza merchants and their business world. Cambridge University Press.
- The Making of Europe: Conquest, Colonization and Cultural Change, 950-1350 (London, 1993)
- Hatcher, J. and Bailey, M., 2001. Modelling the Middle Ages: the history and theory of England's economic development. OUP Oxford.
- Nora Berend, ed., Christianization and the Rise of Christian Monarch. Scandinavia, Central Europe and Rus', c. 900-1200 (2007)

Medievalism is a historically constructed idea. The term medieval was invented by Renaissance intellectuals to:

1. Describe Western European history after the collapse of the Western Roman Empire, and before the so-called European age of enlightenment.
2. Fulfil the intellectual and social needs of scholars in understanding social transformation rather than reflect the social conditions of the period between the collapse of the Western Roman Empire and the late 16<sup>th</sup> century CE European society.

Therefore, the idea of 'Medieval' is highly contentious, even its sense of timeline once applied to global societies are hardly consistent.

However, because of the medievalism construct, there are many myths (or historical factoids) and assumptions created for example the idea of the Dark Ages, the idea that Medieval is a stage of political and social evolution, or even the idea of feudalism.

"Medievalism"  
Is a term invented by Renaissance people  
– Exist after  
– Collapse of Roman Empire  
– Before the Age of Enlightenment

The word 'Medieval' is debatable because of the connotations around its discourse:

1. Negative connotations and stereotypes → Medieval is associated with **Dark Ages**, a period characterised by cultural and **intellectual stagnation, barbarism, and backwardness** → **NOT TRUE**
2. Pejorative use: Medieval is used to describe something outdated, regressive, or brutal (medieval practice, medieval governance) → **lingering bias that sees the medieval period as a time of superstition, violence and cultural inferiority**, which is **not an accurate or fair representation of the complexities of the period.**
3. **Eurocentrism**: the word medieval is inherently Eurocentric, as it is rooted in the **history of Europe.** → diminishes the parallel development in other parts of the world (that often contrasts the European experience) → Tang and Song Dynasty, Islamic Golden Age, or the rise of powerful empires in Africa and Americas during the same period.
4. Imposing Framework: the term Medieval when used to describe non-European societies can be problematic because **it imposes the European framework on cultures that did not experience the same historical development** → **obscuring unique characteristics and achievements of those regions**
5. Complexity and Diversity of the Period → Even in Europe, **the medieval period was far from monolithic.** It was a time of significant changes and intellectual development → **rise of universities, development of legal systems, flourishing art and literature, urban growth, new forms of governance.**
6. Modern political and cultural context often use the term medieval in association with oppression. The term medieval is used to describe practices or ideologies perceived as oppressive or regressive → ignoring humanitarian principles developed during the period.
7. Cultural misrepresentation → poor portrayal in media and education to reinforce stereotypes.

Medieval happens between 900–1500

**The global period between 900-1500 is a diverse period with multiple large kingdoms and empires** It was also highly interactive with one another, with most places in the world not experiencing similar fragmentation and decentralization like western Europe.

### Medieval Eurasia

Power are processed as continuity or inheritance

- The medieval world is defined by its **temporal and historical linearity**. Power, legacies, heredity, and historical order **are processed by states and Medieval intellectuals as a continuity or inheritance of antiquity.**
  - o This gave rise to a **new form of power based** on the idea of “**Charismatic Leadership**” → Justinian, Charlemagne, the Plantagenet kings, and papacy
    - These figures drew namesake from the past as a collective form of empowerment

Form of power: Charismatic Leadership – drew name from the past as a form of empowerment (Alexander I, Alexander II)

- Pope names: Alexander, Alexander II, Innocent I-III, Henry I to VII. A person becomes an embodiment of a grander more sacred and charismatic entity. → Ideas heredity helped with legitimacy
- In Asia, the Caliphate system was built on name and affiliation with the Prophet Mohammed: ie, Rashidun Caliphate → Idrisids and Fatamids. Sinosphere → Clans and religious order gave way to the conception of temporal development and legitimacy → Emperors and Empresses clans and affiliation
- “Ancestry politics” are interlaced with the struggles of ‘paths’ to order and are presented in religious text
  - Theodora, Razia Sultana, and Wu Zetian all relied on legitimacy from riding on the notion of linearity by presenting themselves as living embodiment of the promised ‘golden age’ in religious and political thinking

Legitimacy (in Europe) and in many places were drawn from three medieval Latin world concepts:

- **Auctoritas**: the word is Latin for authority or influence. It refers to a the recognized authority or moral legitimacy that a person, institution, or text holds within society. → the Church, the Pope, the emperor, and classical texts
  - This Latinised concept dates back to ancient Rome and was adopted by Christian theology and the Holy Roman Empire

—(1)Auctoritas  
Moral and Legal  
authority of the  
Church and the Pope

—(2) Ruler and elites  
draw Auctoritas to  
legitimise their rules  
and policies

- **Auctoritas** was central to the moral and legal authority of the Church and the Pope in spiritual matters and often in temporal matters
- **Non-ecclesiastical rulers and elites** sought to derive auctoritas from the Church or from their association with classical and religious texts to legitimize their rules and policies.
- Auctoritas also underpin the legal and moral order of medieval society and guided the development of laws, governance structures, and societal norms.

The establishment of the Holy Roman Empire in 800CE led to the development of two concepts:

- **Translatio Imperii (Transfer of Empire)**: The idea that imperial authority is transferred from one dominant empire or civilization to another. → authority or great empires is passed down through history from one civilization to the next, and almost all of the time ordained by a divine will.
  - Applies to legitimacy of rule, continuity of power, and works as an ideal that helped to unify diverse territories under the concept of a single,

Translatio Imperii (Transfer of Empire)

- Authority can be transferred from one empire to another.
- Ordained by a divine will.

divinely sanctioned empire --? Authority of the emperor over disparate regions.

- **Translatio Studii (Transfer of Knowledge)**: the medieval European belief in transfer of learning, scholarship, and cultural achievements from one great civilization to another. → highlights that intellectual and cultural advancements

Translatio Studii  
(Transfer of Knowledge)  
- Justifying learning knowledge from other cultures  
- Establish foundation for educational system.

ve geographically and temporally from one centre of learning to another.

- o Provides cultural legitimacy: by linking intellectual and cultural achievements to esteemed traditions of past civilisations → enhances cultural legitimacy
- o Helped to justify the revival of classical learning and incorporation of knowledge from other cultures → important for development of European law, governance, and education
- o Established the support for universities and educational systems  
→ Centres for the transfer and expansion of knowledge

### Non-Latinised concepts of power developed during the global medieval period:

**Tianming (Mandate of Heaven)**: This concept is rooted in ancient Chinese political philosophy developed during the early Zhou dynasty (11<sup>th</sup> century BCE), but was compiled into a book called Fengshin Yanyi (Investiture of the Gods) that took inspirations from different folklore, religious myths, and historical tales during the Ming Dynasty (1368-1644).

Mandate of Heaven  
- Heaven grants the right to rule.  
  
-Heaven can withdraw its mandate if ruler become tyrannical.  
  
-This concept is the best parallel with Translatio Imperii

- o Tianming posits that heaven grants the right to rule to a virtuous and just ruler. If a ruler becomes corrupt or tyrannical, heaven withdraws its mandate, leading to the ruler's downfall and the rise of a new, more deserving dynasty. → rulers are judged by justly and effective governance.
  - o The new rulers in this case are responsible for restoring social harmony and prosperity, which is treated as a norm rather than a deviant.
    - Society here assumes that harmony and prosperity is an obligation and something to be expected of those in power.
    - Divine authority intervenes during abnormal time but is not proactive during times of peace. (left to the ruler's will)
- Tianming parallels with Translatio Imperii

**Chakravartin (Universal Ruler)**: This concept comes from Vedic political thought, particularly within Hindu and Buddhist traditions. It refers to an ideal universal ruler who governs ethically and justly over the entire known world. This ruler must possess divine sanction and hold universal authority, often being bounded by the principles of Dharma (law and duty). The idea can be traced back to the early Vedic period (around 1500 – 500 BCE), but developed fully in later texts such as the Buddhist scripture Cakkavatti-Sihanada Sutta

Chakravartin =  
bounded by ธรรมะ

Chakravartin  
= ธรรมราชา ver.  
ทั้งโลก

- In Hinduism, It posits that a sovereign ruler who hold sway over the entire known world (Bharat), is characterise by his/her upholding dharma (cosmic order and justice). In Buddhism, the Chakravartin is an ideal ruler who governs justly and is a protector of dharma, whose legitimacy is tied to the moral and ethical responsibilities in ensuring the well-being of all beings under their rule.
- Chakravartin served as a significant idea in governance and political philosophy → the ideal ruler who governed not just through might but through moral principles → Rulers regardless of their religious affiliations drew on this concept to strengthen their claims to power by aligning themselves with the values of justice, morality, and universal kingship.
  - o The Mughal Empire controlled much of India, but regional powers like the Rajput kingdoms, Vijayanagara Empire, and the Maratha Confederacy invoked the concept to assert their sovereignty and independence.
    - Maharajas see themselves as protectors of dharma and legitimate rulers in their own right.
    - The Vijayanagaras styled themselves 'Chakravartins' to project their authority as both temporal and spiritual leaders. Chakravartin also served as an ideological framework to resist the Mughal, who were considered foreign rulers and were thereby not the true and rightful guardians of Dharma and culture. → Bhakti and Sikh movements were also influenced by this concept (both movements emphasise the protection of dharma and righteous conduct of rulers.
    - The Mughals, under Akbar, developed a parallel concept in order to position themselves as universal ruler who transcended religious divisions and governed for the welfare of all his subjects - → **Sulh-i-Kul (universal peace)** and **Din-i-Ilahi (syncretic religion)** as policy
    - The **Dharmasastra** works as one of the core texts used by all Buddhist and Hindu kings.
      - The Dharmasatra highlights several principles in governance: Raja Dharma (Duties of Kings) detailed instructions on the duties of kings and rulers. It emphasises the king's primary responsibility to uphold (dharma: righteousness and justice), protect subjects, and maintain peace and order in the Kingdom → Dharmasastra is applied onto legal codes it stresses the fair and impartial application of laws to protect the weak and push wrongdoers.

### Caliphate (Khilafah):

The Caliphate represents the leadership of the Muslim community, it began with the Rashidun Caliphs, they were seen as both political and spiritual leader of the Islamic Ummah (community) → the Caliphate played a critical role in legitimising political authority in the Muslim world, linking governance directly to religious and moral leadership established by the Prophet Mohammed.

The Caliphate is governed by several concepts:

- **Shura (Consultation)** → the ruler is expected to consult the knowledgeable and pious individuals before making decisions → binds the ruler to consider the opinions of the community or representatives, thus promoting a form of participatory governance, particularly on *matters of public interest*.
- **Adl (Justice)** → justice or fairness is one of the central values in Islamic governance. Adl is considered a divine command, and a ruler who fails to uphold justice is seen as violating their moral and religious duties → rulers are morally bound to administer justice impartially and ensure that the rights of all individuals, regardless of their status, are protected.
- **Amanah (Trust)** → Authority is viewed as a trust given by God to the ruler, who must fulfil this duty with integrity and accountability
- **Maslaha (Public Welfare)** → A principle in Islamic jurisprudence that guides ruler to promote the well-being of the community → rulers MUST prioritise the welfare of the people in all decisions and polities, Maslaha provides a framework for rulers to justify actions that may not be explicitly mentioned in Islamic law but are necessary for the common good.
- **Sharia (Islamic Law)** → rulers operate under the Sharia, which provides a comprehensive guideline for all aspects of life, including governance. The Sharia is derived from the Quran, the Hadith (sayings and actions of the Prophet Mohammed) → often this leads to contention), and other Islamic texts. → rulers are not above the law.
- **Hisbah (Accountability)** → responsibility of the ruler to ensure moral conduct in society and to be accountable to God and the people. → rulers should be open to criticism and correction from the people
- **Khilafah (Stewardship)** → humans are stewards of God's creation on earth; thus, ruler is seen as God's vicegerent responsible for implementing divine will on earth → the highlight is the idea of protecting the environment because it encompasses all creatures
- **Bay-ah (Oath of Allegiance)** → an oath given by the ruler to the people → protection of rights, administration of justice and upholding of Sharia.

Sharia  
= Constitution  
of Islam

These principles led to the successes of the Islamic Golden Age through embodiment of moral authority, unified leadership, and patronage of arts, sciences, and culture (considered wellbeing).

### Linearity in Medieval Rulership

Auctoritas + Translatio Studii + Translatio Imperii → creates the concept of linearity in medieval rulership.

- Structured Progression of Power:

- The idea of linearity refers to the structured, predictable path of succession and governance in medieval rulership. This progression follows established rules, particularly those related to succession, the consolidation of power, and the personal characteristics of the ruler.

- **Centralised Authority:**

- Medieval rulers sought to centralise authority under the crown, which involved consolidating power over various territories and reducing the influence of local lords. This centralisation was key to maintaining control over a fragmented society.

- **Succession Law via Primogeniture:**

- **Primogeniture:** The firstborn son inherits the throne upon the death of the king, leading to a clear and linear transition of power. This system was designed to prevent disputes over succession and ensure a stable transfer of authority.
- **Weaknesses:** Despite its intended clarity, the system of primogeniture often led to power disputes, especially in cases where there were no clear heirs or when events did not follow the expected linear path. This is illustrated by historical conflicts such as those involving multiple claimants to the throne (e.g., the various King Henrys of England).

- **Consolidation of Royal Power:**

- Medieval kings aimed to consolidate their power by bringing more territories under direct royal control. This involved reducing the influence of powerful lords and centralising governance.
- Norman Conquest of England (1066): This event is cited as an example of the consolidation of power, where the central authority of the crown was strengthened at the expense of local lords, reshaping the power dynamics in England.

- **Royal Charters and Law:**

- The development of common law under centralised royal authority played a crucial role in the consolidation of power. Legal authority became more centralized, diminishing the independent power of local lords.
- **Magna Carta:** The disputes between the crown and the lords, especially over issues of legal authority and governance, eventually led to the signing of the Magna Carta. This document is seen as a key moment in the evolution of legal and political power in England, limiting the power of the king and laying the groundwork for constitutional governance.

- **Dynastic Expansion:**

- The expansion of royal power often went hand in hand with the growth of dynasties. The Capetian kings of France, for example, played a significant role in the creation and expansion of the French state through a process of dynastic consolidation and territorial expansion.

## Charismatic Leadership

### 1. Personal Magnetism:

- a. Charismatic leaders are often perceived as extraordinary individuals who possess qualities that distinguish them from ordinary people. This

Medieval rules under the "Crown" or King.

– Primogeniture

Ensures that the firstborn son inherits the throne

Magna Carta

– Limiting the power of crown.

– Laying foundation for constitutional governance



personal magnetism draws followers to them, as they are seen as special, almost superhuman figures who inspire loyalty and devotion.

2. Visionary Leadership:

- a. Charismatic leaders frequently display visionary leadership, articulating a clear and compelling vision that offers solutions to the problems or challenges faced by their followers. This vision provides direction and purpose, motivating people to work towards a common goal.

3. Emotional Appeal:

- a. The ability to effectively use emotional appeals is a hallmark of charismatic leadership. Such leaders excel in uniting and mobilising people, fostering a strong sense of commitment and loyalty. Their emotional intelligence allows them to connect deeply with their followers, making them more effective in rallying support.

4. Crisis Leadership:

- a. Charismatic leaders often emerge during times of crisis. In such moments, their decisiveness, strength, and ability to inspire confidence become particularly valuable. They provide the leadership needed to navigate through difficult times, offering stability and hope.

5. Personal Sacrifice:

- a. A willingness to make personal sacrifices for the greater good is another trait of charismatic leaders. This selflessness further endears them to their followers and solidifies their authority, as it demonstrates their commitment to the cause beyond personal gain.

6. Impact on Authority and Governance

7. Legitimation of Authority:

- a. Charismatic leaders often use their personal charisma and perceived divine right to legitimise their authority. Historical figures such as Louis IX of France (Saint Louis), Wu Zetian, and Fatima-al Fihri utilised their charisma to gain and maintain power. They were seen as leaders with a divine or extraordinary mandate, which helped them solidify their rule.

8. Unifying the Realm:

- a. Charismatic leaders were instrumental in unifying their realms, particularly in times of war. Leaders like Joan of Arc, Richard the Lionheart, and Empress Jingu inspired their troops and subjects with their charisma, leading to significant military and political achievements. Their ability to rally people around a common cause was crucial in consolidating their power and influence.

9. Dynastic Influence:

- a. Charismatic leaders often had a profound impact on the trajectory of their dynasties or states. Founders and reformers such as Emperor Charlemagne, Justinian I, and Saladin shaped the future of their regions



through their visionary leadership. In some cases, their influence extended beyond their reigns, affecting the long-term stability and direction of their states.

#### 10. Charismatic Nobles and Clergy:

- a. The slide also notes that charisma was not limited to kings and emperors but was also found among nobles and clergy. Figures like Thomas Becket, Archbishop of Canterbury, and Christine de Pizan used their moral authority and charisma to challenge the political and religious status quo. These individuals played crucial roles in shaping the political and religious landscapes of their times, demonstrating that charismatic leadership could be a powerful force beyond the throne.

The Medieval period had two characteristics: *decline in literacy rate* and *fragmentation* for a long-time charisma became a key political device and the political persona and strategies adopted by leaders became a blueprint for many political personalities and systems across time. → Think public psychology! People don't often make the most rational decisions, and often charisma + looks play a large role in commanding power and authority. Charisma politics still largely matters a lot in the age of mass media.

#### **The difference between 'Power and Legitimacy'**

You can have power without authority, or authority without power. Power only becomes legitimate when there is a balance developed from time, geography, and context. Balancing the power and authority allows power to be legitimate.

##### → Too much power no legitimacy

- Fragile, volatile, non-resilient over time
- Power trumping authority can sometimes work as a means to handle 'unforeseen' or 'abnormal circumstances' like disaster or war.

##### → Too much authority no power

- Nothing gets enforced even if its on paper
- No trust, and poor social coordination

A measurement of power in states is the ability to tax and increase tax revenue. Economics is power!!! Too much cooperation means the state needs to give away interest to achieve governance → little money in the coffers

Too much coercion means too much policing! This is why its very hard to maintain true authoritarian regimes → you keep losing money!

Parliament legitimises the state power to exert higher taxes, by ridding of ambiguous separate coordination attempts (at least in theory), but for the English state → taxes did not reduce after the Magna Carta, it just increased with less dissent.

## Medieval Europe and Christendom

It was a time of transition, in the west you have multiple kingdoms, decentralized governments, and the rise of Papacy. On the other hand, the east continued as the Roman Empire → Byzantine Dynasty, Orthodox Christian Church, and continued legal and administrative reforms under Justinian I (527 to 565)

- The Byzantine Empire had all the characteristics of Medieval states
  - o Charismatic leaders: Justinian, Theodora, Procopius, etc.
  - o The Justinian reforms, Corpus Iuris Civilis becomes the foundation of modern European civil codes → further refining the Roman legal system
  - o The Byzantine did NOT have a hierarchical Christianised set-up → separates Eastern Orthodox Church from the Roman Catholic Church in the West.

Parallel Roman concepts developed in the West under the Church of Rome:

### Plenitudo Potestatis (Fullness of Power) and Ecclesiastical Authority:

- **Papal Authority:** The Pope's claim to *plenitudo potestatis* (fullness of power) positioned the papacy as the supreme ecclesiastical authority, with the right to enact canon law and serve as the highest judicial authority in Christendom. This concept, derived from Roman law, was critical in establishing the Pope's dominance in religious matters and his influence over secular rulers.
  - Usage of **plenary power** by the Pope often led the papacy into conflict with secular rulers, particularly the right to appoint bishops and the authority to govern church lands.

### Dominus Mundi (Lord of the World) and Imperial Sovereignty:

- **Emperor's Sovereignty:** The concept of *dominus mundi* (lord of the world) was used by emperors to claim superiority over all other kings and rulers. This came from the Roman notion of the emperor as the supreme authority over the entire civilised world. In the medieval period, emperors like Frederick II used Roman legal principles to assert their claim as inheritors of the Roman Empire, aiming to establish a universal monarchy.

The extent of imperial power (*dominus mundi*) led to debates over *de facto* versus *de iure* (legal) sovereignty revolved around whether an empire was a **singular, unlimited sovereign entity** or a **collection of territorially limited sovereign states**. These debates were influenced by Roman legal traditions and were central to the development of the concept of modern sovereignty, where the legitimacy of state authority was defined by both territorial control (power) and legal recognition (authority).

- An empire can exist in different form → legitimately powerful empires possess the strength to enforce cohesive culture, homogenous identity, and centralised top-down control → administration and empire identity is nation-centric
  - o In theory, this might work, but even for the successful ancient empire like the Romans, it is never truly a singular and unlimited sovereign power.
- The other forms of governance is collective territories with limited sovereign state; in other words, administration is largely decentralised and often reliant on regional powers.
- The centralised legal system (authority) may not always translate and disseminate well across different territories leading to a de facto empire.

**De Facto Empire:** an empire that has actual control over territories, people, or governments, regardless of whether the control is officially recognised by the law or by the other states → examples: British Empire in its early stages; the EIC acted with the backing of the Crown but without formal legal authority.

**De iure Empire:** There is a legal and official recognition of sovereignty or control, it comes from other states, international law, or internal legal framework that is accepted by the conquered society. Rulers of iure empires hold formal titles, and their authority is enforced and established by laws, treaties, or constitutions.

| Recognition              |                                                                                                                                                             |
|--------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|
| De facto                 | Authority is recognised in practice but not necessarily by law or by other states                                                                           |
| De iure                  | Authority is recognised by law, formally acknowledged, and often supported by legal or international recognition.                                           |
| Control                  |                                                                                                                                                             |
| De facto                 | Control is exercised through the exertion of force, influence, or occupation without backing of legal authority                                             |
| De iure                  | Control is exercised with legal legitimacy and recognition often supported by official titles, treaties, and laws.                                          |
| Stability and Legitimacy |                                                                                                                                                             |
| De facto                 | De facto empires are volatile to legitimacy as its authority is not legally recognised and may be seen as illegitimate → leaves room for policy instability |
| De iure                  | De iure empires are more stable and legitimate as its authority is backed by                                                                                |

|  |                                                |
|--|------------------------------------------------|
|  | law and recognised by other states or entities |
|--|------------------------------------------------|

**VERY IMPORTANT** → In practice, most political entities are never mutually exclusive de facto or de iure (usually, they're a bit of both). An empire might start as a de facto entity and later become de iure, or it might lose de iure status but continue to exercise de facto control over certain areas. \*\*\*\* understanding the difference between the two is key to understanding the nature of authority, legitimacy, and sovereign in historical and contemporary contexts.

### **Influence on State-Building and Sovereignty:**

- **Roman Law as a Foundation:** The revival of Roman law in the medieval period, particularly through the study and application of the Corpus Iuris Civilis, provided a legal framework that influenced the formation of centralised states. Monarchs and emperors used Roman legal concepts to legitimize their rule, establish legal systems, and consolidate territorial control.
- **Balance Between Church and State:** The tension between the papacy's claim to *plenitudo potestatis* and the emperor's claim to *imperium* shaped the development of medieval states. The resolution of these conflicts, often through treaties, councils, and legal reforms, contributed to the emerging notion of sovereignty as a balance between spiritual and temporal powers.

### **Medieval Foundations of International Relations and Law**

The foundations of International law have been criticised for its Eurocentric and Colonial dimensions, most of these concepts were drawn in during the Medieval period.

Definition:

- **Realism:** The belief that universal such as justice, truth, or law exist independently of human thought and are grounded in the higher, often divine, reality. The universals were reflection of God's will, which could be discovered through reason and were applicable universally
  - This idea is supported by Thomas Aquinas (1225-1274)
  - Early international law was deeply influenced by Christian theology, particularly the idea that there were universal moral and legal principles derived from God's will.
    - It aligned with the belief that European norms and values (particularly Christian), were universally applicable → justifies colonialism and the imposition of European legal systems on non-European peoples
  - Ideas like natural law, developed by thinkers like Aquinas

- Nominalism: Universals do not exist independently of human thought; instead, they are merely names that we use to describe groups of individual objects or concepts. Moral and legal principles are not fixed or inherent in divine order but are instead contingent on human agreement and understanding.

Both Realists and Nominalists influence the intellectual discourse of international law:

- Early international law was deeply influenced by Christian theologian, particularly by the realist school which argue that there were universal moral and legal principles → European norms and values were universally applicable and justifiable to be imposed upon colonies and legal systems of non-European people.
- Natural law developed by thinkers like Aquinas was based on universal accessible through reason and grounded in divine order.
- Nominalists on the other hand, argue that legal and moral norms are not universal but a product of human agreements and contexts. They support more inclusivity of diverse cultural and legal traditions, rather than imposing a supposedly universal but Eurocentric framework. → central to TWAIL (Third World Approach to International Law), who argued that international law has historically marginalised non-European perspectives.



Figure 1 Map of Europe year 700 (Euroatlas.net)

Post-Roman Europe was a fragmented world. While, the barbarian kingdoms have consolidated into multiple kingdoms, including the Kingdom of Italy, the Franks became the dominant ruler under Francis and Aquitaine.

- Europe relied on the Roman state-centric model to reestablish states. → Carolingian Empire, the Kingdom of the Franks. → The Franks were divided into two parts:
  - Neustria (northern France + Paris) and regions like Aquitaine and Burgundy
  - Austrasia: modern day Northeast France, Belgium, Luxembourg and western part of Germany
  - Other smaller parts include Frisia and Thuringia (Netherlands and Northern Germany)
    - They were both ruled by the Merovingian Dynasty
      - The founder was Clovis I (the guy who converted to Christianity!)
    - Merovingian power started declining, the king became a figure head and the mayors of the palace held a large power (particularly



in Austrasia, where the Carolingian family were mayor of the palace).



In 800CE, the Frank Kingdom under Charles the Great rose to power consolidating vast territories. Charles the Great, or Charlemagne, was a member of the powerful Carolingian dynasty which rose to prominence under his grandfather Charles Martel and his father Pepin the Short.



- Charlemagne reigns mark the extensive unification of territories. Charlemagne gained translation imperii by earning the support of the Pope Leo III, who



crowned him as “Emperor of the Romans” on Christmas day in 800CE at St. Peter’s Basilica.

- The Carolingian practiced **partible inheritance**, a system where the empire or kingdom was divided among all the legitimate male heirs of the rulers to ensure that all sons receive a share of the father’s realm, rather than concentrating power in the hands of a single heir.
  - This led to a lot of succession crisis and political fragmentation, many European kingdoms would later abandon this practice in place of primogeniture (entire estate or kingdom was inherited by the eldest son) -→ better for centralized states.
  - **\*This is related to political stability and debates related to centralisation\***
    - Partible inheritance is practiced by the Merovingian, Lombards (the place where the term feudalism was borrowed from), early Anglo-Saxons, Arpad Dynasty (Hungary), much of Scandinavia until the adoption of Christianity, Kievan Rus, Seljuk and Mamluk Sultanate, and the Maratha Confederacy.
- After Charlemagne died his empire was divided among his grandsons in the Treaty of Verdun in 843 creating → West Francia, East Francia, and Middle Francia.... West Francia would be the foundation of the Kingdom of France.
  - Hugh Capet, a noble, eventually was elected as king in 987 by the council of nobles after the death of the last Carolingian king of West Francia, Louis IV who died without an heir.
  - Hugh Capet established the Kingdom of France.
- The Norman conquest is another important impact factor in European history, particularly in the foundation of the Kingdom of England.
  - Contributed to consolidation of English territories from the different Anglo-Saxon, Cornish, Welsh, and Gaelic kingdoms.
  - Imported French and European court culture and administration to England
  - Centralisation of power → William the Conqueror reduced the influence of Anglo-Saxon lords and changed the aristocracy to Norman culture (also making up of Norman lords)
  - They introduced a new legal practice to England → brought Curia Regis to England
  - The Conquest shaped the direction of the English monarchy and the establishment of the Kingdom of England.
  - Domesday Book: a book of landholding and resource survey across England → example of centralisation



1. **Craft Guilds:** These were associations of artisans and craftsmen who worked in the same trade (e.g., weavers, blacksmiths, cobblers). Each craft had its own guild.
  1. **Functions:** Craft guilds controlled the quality of work, set prices, regulated working hours, and oversaw the training of apprentices. They ensured that members maintained high standards and prevented competition from non-guild members.
2. **Merchant Guilds:** These were associations of traders and merchants who controlled trade within a particular town or region.
  1. **Functions:** Merchant guilds regulated trade, set rules for commerce, protected their members' interests, and sometimes even held monopolies over certain goods. They played a key role in the economic life of medieval towns.

### **Importance of Guilds in Medieval Society**

1. **Economic Regulation:**
  1. **Quality Control:** Guilds maintained high standards of production by setting rules for the quality of goods and services. This helped ensure that customers received consistent and reliable products, thereby protecting the reputation of the craft or trade.
  2. **Price Regulation:** Guilds often regulated prices, preventing undercutting among members and ensuring that all guild members could make a fair profit.
2. **Training and Apprenticeship:**
  1. **Apprenticeship System:** Guilds played a crucial role in training the next generation of craftsmen. Young boys would start as apprentices, learning the trade under the guidance of a master craftsman. After years of training, they could become journeymen and eventually masters themselves.
  2. **Standardised Training:** The guilds ensured that training was consistent, which helped maintain the quality and skills associated with each craft or trade.
3. **Social and Political Influence:**
  1. **Social Cohesion:** Guilds provided a sense of community and social support among their members. They often took care of members in times of sickness, old age, or financial difficulty.

2. **Political Power:** In many towns and cities, guilds became powerful political entities. They often controlled local government, influenced laws, and even played a role in the selection of city officials.

#### 4. **Monopolies and Protectionism:**

1. **Market Control:** Guilds often held monopolies on certain trades within a town, meaning only guild members could practice that trade or sell specific goods. This protected their members from outside competition and helped stabilize local economies.
2. **Defense Against External Threats:** Guilds also protected their members from external threats, such as unfair taxation or competition from non-guild traders.

#### 5. **Cultural and Religious Role:**

1. **Patronage and Charity:** Many guilds were involved in religious and charitable activities. They would often sponsor local churches, participate in religious festivals, and provide for the poor.
2. **Guildhalls and Symbols:** Guilds often had their own halls where members met and conducted business. They also had symbols and coats of arms that represented their trade, which became important aspects of the cultural identity of medieval towns.

- By 1400 the world hit a 'little ice age' → decline in productivity → more was
  - European kings funded their military by hiring mercenaries → to fund this they BORROWED MONEY
  - The papacy also initiated several crusades, which costed a lot of money to finance, on top on other policies such as payment for cathedral constructions, relics, etc.
  - Sovereign debt increased rapidly across Europe
    - The concept of sovereign debt is important
    - It started in the Italian city-state (Venice, Genoa, and Florence), who developed the idea of public debt by issuing 'prestiti' or loans to finance its military campaigns, which were funded by wealthy citizens who received interest in return. The bonds could be traded between the citizens.
    - English and French monarch started doing the same...except they were borrowing from wealthy families, Italian banking houses (Medici and Bardi), and later

domestic sources.... the tallies was a form of debt instrument the English crown used to finance the Hundred Years' War.

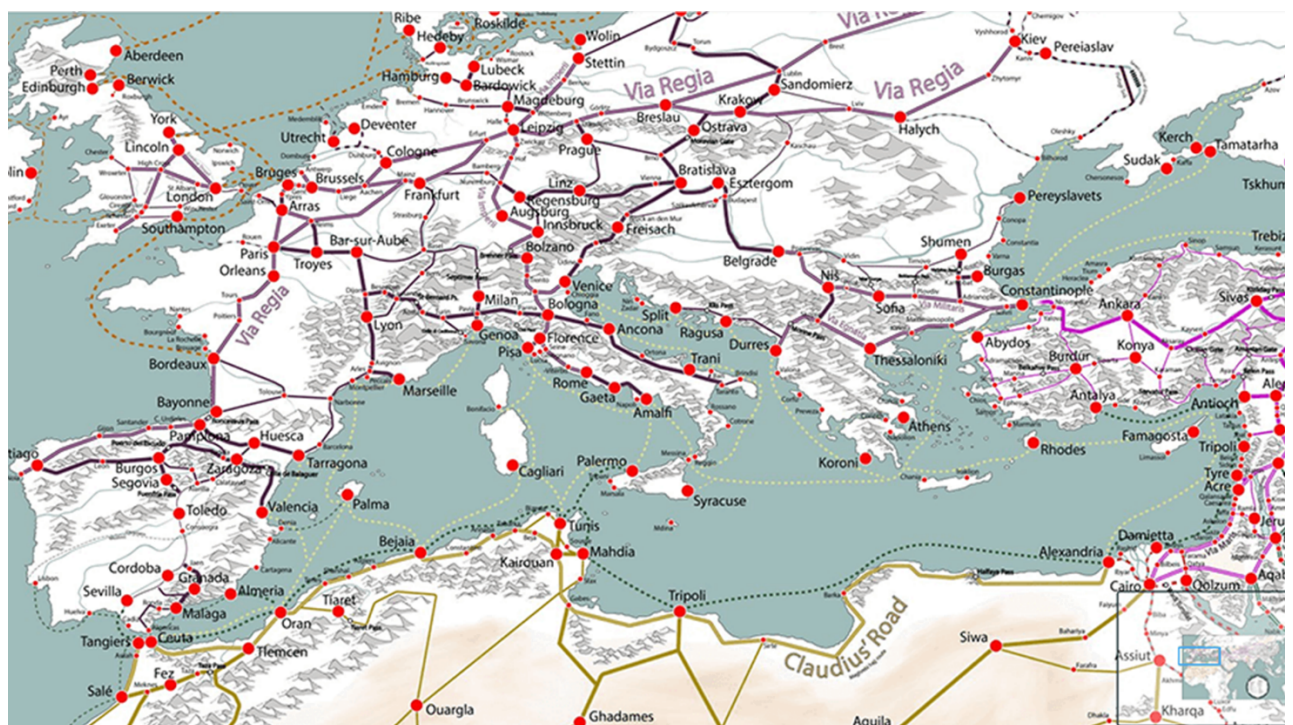
- Growing sovereign debt meant the state needed more sophisticated tax system to pay off its debts → advancement of customs duties and direct taxes.
- **The idea behind sovereign debt suggest that the state/crown had:**
  - Level of sovereignty to engage in contracts
    - Territorial and political authority (they know what they're taxing! -→ Domesday book)
  - Legal personhood of a state
  - Continuity of sovereign obligations
- Kings were finding themselves short of money → one good example is King John of England who suffered huge financial shortage from Henry II's war and his brother Richard the Lionheart's participation in the Third Crusade. Richard was captured by the Holy Roman Empire, and John had to pay a huge ransom for his release. John also engaged in war with France to try and win back the Duchy of Normandy.
- Conflict between the crown and lords led to the conception of the Magna Carta in England whose aim was to limit arbitrary law and divert power to parliament (formerly a form of Curia Regis), and limit the power of the crown:
  - Many predecessors including: Capitulary of Quierzy (877) → limit the arbitrary power of a monarch by recognising and protecting the rights of the nobility.
  - Edward the Confessor's reign was marked by the codification of Anglo-Saxon laws that were respected and referred to by later monarchs. These laws were seen as embodying the ancient rights and customs of the English people.
    - The laws of Edward the Confessor were seen as a benchmark for just and lawful rule, and they were often cited by those who sought to limit royal power, including the barons who pushed for the Magna Carta.
    - **Remember!!! THE IDEA SURROUNDING MORAL AUTHORITY AND BOUNDED AUTHORITY had been around in the antique empires.**



- **Laws were made, revived, and updated as responses to events**

Stability in Europe:

- Stability in Europe led to an expansion of towns and cities → population grew very dense across major trading cities
- North Europe started developing its own network via the Hanseatic and North Sea network that also linked to parts of the Silk Road
- Different guilds started developing
  - They regulated trade, and some even established their own bonds and currencies
  - They lend to kings
- Monopolies formed through merchant guilds
- Production guilds → protégé system → people travelled to different places to learn craftsmanship
- Northern Europe specialised in metal work, wool processing, and grain trade



The black death eventually hit → leading to MASSIVE population decline in large European centres

HOWEVER, it had an unintentional effect...suddenly the large cities were finding themselves WITHOUT labour force → rural population moved into take city jobs → production guilds found ways to mechanise production as wages increase

- **Many port cities shifted away from grain production, relying instead on imported grain → certain parts of Europe never grew industries → benefited**



**from large grain trade. (le Poland and Ukraine) → this will later on create a divergence between Western and Eastern Europe**

The 100 years war was the first war of newly centralised national monarchies

- Fought over: English titles to French lands and control of Flanders
- The war had a permanent damage on both state:
- It led to French division with weakened fiscal power (no money from war!) and revolts, and in the process a weak French King (Charles VI 'the Mad'). By 1415 Paris was not only threatened but France was faced with a new threat from an English allies in the East, the Burgundy.
- Henry VI proclaimed himself as King of France and England via the Treaty of Troyes in 1420, this was not recognized by the French people who supported Charles VII.
- Joan of Arc would play a large role in reversing the course of history, she united the French people around the king (supporting national identity), this resulted in 1429 French victory at Orleans. She was later sent to Burgundy and burnt at a stake in 1431.
- The war resulted in permanently removal of England from French soil except a small portion of Calais, but it came with a huge cost on French coffers. Peasants were angry with the cost.
- The war resulted in national armies paid by the state instead of hiring mercenaries. Taxes were raised and infantry grew.
- **FORMATION OF ENGLAND AND CONTINENTAL FRANCE**

Approaches to "Feudalism"

By the 20<sup>th</sup> century, feudalism have become a dominant historical process that describes the evolution of states and relationships within Medieval (and non-modern) societies. However, feudalism and the way it operates does not reflect actual medieval societies. So where did the term feudalism come from?

- The origin of this is part of the enlightenment movement to generate the medieval dark ages by simplifying and politicizing the discourse on medievalism-vis-à-vis enlightened age.
- In the 16<sup>th</sup> and 17<sup>th</sup> century, a group of French legal scholars who were studying medieval land management practices (with the above mindset).
- A collection of 12<sup>th</sup> century land management text in Lombard called the Libri Feudorum caught the attention of these scholars.
- Parts of the Libri Feudorum was integrated into the Corpus Juris Civilis (Civil code of the Holy Roman Empire)

- The relationships described in the Libri Feudorum was simple and clear enough to serve as a general description of the backwardness and chaos in Medieval land governance.
  - There are several problems associated with the Libri Feudorum application as a non-legal framework but as a system of governance, social interaction, and economic production.
    - Generalisation: while some legal principles in the Libri Feudorum was integrated into the Corpus Juris Civilis → it is only a codification process and not applicable across Europe
    - The text was a legal custom used to solve *disputes* over **land tenure, vassalage, and inheritance** under Lombardian Germanic customs and cannot be used to describe social relationships, vassalage, or forms of land holding.
    - Land tenure, vassalage, manorialism, and inheritance worked differently in different European states.
    - Later scholar over reliance on literal interpretation and applying the text created a false imagination of medieval social, political, and economic relationship.
- The system of serfs (peasants tied to the land working in return for a lord in return for protection) was known as manorialism. Surpluses were commonly sold in the rural markets.
- Vassalage: mutual relationship of loyalty and service between a vassal and a lord.
  - The term is often conflated to describe a system where the vassal receives land (fief) in exchange for lord protection → this is NOT vassalage its manorialism
    - Fiefs are NOT just land, they can be any forms of gifts/objects or symbolic gestures, even income from things like toll tax collection.
    - Landed fief relationships were popularised as a system in France and taken to England by the Normans, but they also diverge between North and South of France, as well as England.
    - Northern France developed a direct vassalage between the crown and vassal, while Occitan (Southern France) remained decentralised with the lords developing their own vassalage agreement with vassals.

Elizabeth Brown and Susan Reynolds were some of the more prominent critiques of the myth surrounding feudalism as a construct → social order and relationships

This furthered the debate on the nuances around feudalism, such as subinfeudation and violence.

Generally, there is an agreement that there was indeed some varying degree of different political organisation that could be classed as within the 'feudal scopes' particularly when addressing the legal context of places with strong Holy Roman Empire traditions, but social and economic feudalism is heavily debated particularly with further researches into sales and trade of surplus by peasants in rural economies.

➔ Refer to discussion from debates surrounding the 'feudal revolution' ➔ Wickham versus Bisson

**Centre of Gravity** ➔ changing centre of gravity

**\*Important\*** There are two main usages for the concept surrounding 'Centre of Gravity'

1) It is a military legal concept that argues that the law of the place with closest connection to the conflicted place applies.

2) Centre of Gravity discussed here is an idea that links the spatial average of the world economy together ie. The average clustering of wealth and economic power to the geopolitical dynamics.

➔ changing geopolitical gravity has paved way for the rush to understand non-Global North narratives.

### **Inheritors of Rome: Rise of Islam and the Caliphate System**

Up until the 17<sup>th</sup> century, the centre of political cohesion and economic power lies in the Islamic world. Many late 17<sup>th</sup> and 18<sup>th</sup> century European scientific thought and philosophical tradition owed its origins to scientists and philosophers in the Islamic world.

**The Islamic Caliphate are DIRECT inheritors of the Roman Governance and Legal tradition via the Eastern Roman Empire.**

The idea of the Caliphate came to attention with the events that unfurled the Islamic state in the 21<sup>st</sup> century, most people study this as a byproduct of Middle Eastern response to western intervention, but reading through ISIS journal like the Dabiq, one can't help but wonder if the ideas goes deeper. The Islamic State has made the revival of the caliphate a centerpiece and a keystone of its project for Islamic renewal.

It is a reverie to the time when the caliphate was the most powerful and advanced polity in Eurasia, Baghdad had a population of half a million while London and Paris could only muster a fraction of that number. They had huge areas with a standing army and a literate and numerate bureaucratic order with centres of intellect stretching from the

Islands of Melaka, to the great intellectual centers (great madrasa) of Tashkent and Samarkand, Baghdad, Cairo, to Fez and Cordoba.

Knowledge of this history can encourage the cultural and self-confidence about the real glories and achievements of a vibrant civilization. This experience of pride lost, though not unique to the Islamic world, as we will see in the Chinese example. Yet history as a device for identity and inspiration hasn't been used in such way elsewhere.

- The caliphate is a system constructed over time after the death of the Prophet Mohammad in 632.

The Islamic world took the spaces that were occupied by the Eastern Roman World. Its governance was heavily borrowed from Jewish and Middle Eastern Christian.

- The Caliphate system relies on an elected system from a selection of 'qualified' candidates
  - o This would develop into a Schism between the two strands of Islam →
    - The Prophet's companions who were part of his Quraysh tribe → formed the Sunni branch of Islam → the Sunni formed the 'Caliphate' leadership after the fall of the Rashidun Caliphate
    - The Prophet's daughter Fatima and her husband Ali (Shi'ites) → Shi'ites accept Fatima as the Prophet's ONLY daughter, and Ali being the only son-in-law: The Prophet's family is considered the holy family and thereby legitimate to rule but through Imam leadership → triggering a disputed view on Abu Bakr, Usman, Uthman, particularly Uthman who belonged to the Umayyad clan of the Quraysh tribe as opposed to the Mecca tribe.

There is a difference in criteria in choosing a ruler via Nass or the choice (designation) by previous rulers.

Islamic laws and governance operate very much like the Roman Codex system, with integration and interpretation of the Hadith (oral tradition like the testaments) versus Ulama (interpretation of Islamic texts through reliance on scholars).

- Islamic laws heavily borrowed from previous dynastic and legal system; for example, Roman and Persian laws
  - o For example, Islamic laws may have developed independently from the customs and religious traditions of Arabia, but property rights and commercial laws were heavily borrowed from the Romans.
  - o There is also a shared jurisprudence on matters of international law such as fiqh-al-jihad (Islamic law of war), which came from interactions and war with the Romans.

YOU DON'T NEED TO REMEMBER ALL OF THIS:

Islamic law (Sharia) contains all ranges of codes and legal practices, including:

- Ibadat (acts of wisdom), which regulates relationships between individuals and Allah (god)
  - o Salah (prayer): rules related to prayers, purification, and rules of congregation
  - o Sawm(fasting), Ramadan and other voluntary fasts
  - o Zakat (charity): mandatory alms giving that purifies wealth
  - o Hajj (pilgrimage)
- Muamalat (transaction and contracts) → interactions between people, much of these are influenced by the surrounding Arabian world pre-Islamic laws and culture.
  - o Contracts, trade and commerce, loans and debts (regulations on lending and borrowing), inheritance
- Hudud (fixed criminal penalties) → laws regarding theft, adultery (zina), false accusations of adultery (qadhaf), consumption of intoxicant, and apostasy
- Qisas (law of retaliation) → criminal offenses related to bodily harm
- Diyya (blood money) → compensation to families of a victim of bodily harm
- Tazir (discretionary punishments): crime for which punishments are not fixed by the Quran or Hadith but left to the judge (lesser offences)
- **Siyar (International law): Islamic state in matters of foreign relations including war and peace**
  - o **Jihad: Laws governing armed struggle whether defensive or offensive**
  - o **Treaties: Guidelines for creating and maintain peace agreements with non-Muslim states**
  - o **Prisoners of War: rules on how to treat captives during war time.**
- **For example:**
  - o **Arabs are forbidden from assuming ownership of conquered lands**
  - o **Soldiers lived in military camps and were paid**
  - o **Life must be preserved in the countryside**
  - o **No forced conversions or missionary activities**
- Personal status laws (Ahwal al Shakhshiyya) – marriage, divorce, child custody
- **Siyasah (Governance and Public law) – political structure on selection of leaders (caliphs and sultans), Maslaha (public welfare) – responsibility of leaders to provide public good and welfare.**

**Between the 8<sup>th</sup> to 14<sup>th</sup> century, the Eurasian World entered a period referred to as the Islamic golden age. This coincides with the Song economic revolution in China. Several factors led to the Islamic golden age:**

- Translation movement and preservation of knowledge

- The Abbasid caliphate established houses of wisdom (Bayt al Hikma) where scholars worked to translate Greek, Persian, Indian, and other ancient knowledge into Arabic
- There was a huge patronage of learning and encouragement for a spirit of inquiry → allowed scholars to prosper regardless of their religious affiliation
- Integration of various cultures → as Islam expanded, providing the above institution, the intellectual environment became enriched by the culture and languages it encountered → fusion of Greek, Persian, Indian and Roman ideas led to advancements in mathematics, medicine, astronomy, philosophy, and literature.
- Early Islam was known for its *flexibility*, the early and mid-Abbasid period had high intellectual freedom in the field of philosophy (falsafa) and theology (kalam).
  - Scholars like Al-Farabi, Avicenna (Ibn Sina), and Averroes (Ibn Rushd) were influenced by Greek philosophy and engaged in deep rationalist discourse that sometimes seemed quasi-agnostic (taking after the naturalist schools) or at odds with strict religious orthodoxy.
  - Mu'tazilites school supported the use of reason to interpret Islamic teaching → this school was later persecuted in the late Abbasid period → Averroes was exiled and many of his works banned in Almohad Caliphate (North Africa)

### **Islamic Empires and its legacies:**

- Turkic ascendancy: As the Caliphate expands, Arabs soon became a minority population. Large empires like the Abbasid and Fatimid relied on a recruitment model very similar to those of the Roman empire. Adolescent male of Armenian, Turk, Sudanese, and Copt were taken from their families in order to be trained as 'slave' soldiers and bureaucratized. They formed the bulk of the Caliphate's military, and 'prized' slaves were selected to serve in administration. As a result, powerful viziers like Badr al Jamali was a Mamluk with origin from Armenia. The Buyid dynasty in Iran and Iraq relied on Turkic slaves.
- Eventually these powerful slaves would seize power and formed their own dynasty, like the Mamluk (who were largely non Arab) and Seljuk dynasty.
- Islamic empire legacies:
  - Sharia law system and governance
  - Art, scientific and philosophical knowledge
  - Consumer culture and manufacturing
  - Non-nation-state centric empire

Sinosphere:



- Sinosphere are those civilisations, whose discourse are influenced by cultural, linguistic, and political and legal organization is influenced by China.
  - Chinese political institution and social structure is constructed on Empire-based centralisation: centralised bureaucracy with decentralised governance.
    - As territories expand this creates a **centralisation paradox**
      - “The sky is high and the emperor is far away”
      - The state centralises meritocratic structure to ensure greater participation and function in governance.
        - The idea is to get rid of lineage and clan politics of the feudal age and empower the best attribute from the best candidate → If you’re a well-learned son of a farmer you can become a general or a vizier.
        - However → technocratic centralise bureaucracy also has its downfall
          - Control over access to the BEST education (education is a channel for evaluation)
          - In places where bureaucracy doesn’t exist to regulate the rules, informal bureaucracy emerge → money and long distant trade regulation
            - These fall into the hands of powerful patron and local elites → creates a system of clientelism.
- Sinosphere state are busy with regulating affairs of STATE → defence, offence, border securitisation, public work management
  - Commerce and trade were deregulated and guilds emerged
    - These guilds are neither individualistic nor collective
    - They are neither completely open nor close → Not everyone can join, but technically opportunity is open to everyone
- The law dictates that the emperor owns the lands at a symbolic level → you can private contract land and ownership
  - If someone hoards too much land (core of the state structure) → then it becomes a political tension
    - Tang to Song Dynasty changes was also due to land ownership ratio disputes:
      - Emperor role: distribute welfare and wellbeing, ensure security

- Allows land trade → some merchants + bureaucrat became very rich → hoarded good land → emperor criticised for allowing this to happen
- **Huaxia (華夏)** is a term that originated in ancient China and refers to the early Chinese civilisation and people who identified with a shared cultural and ethnic identity. The term combines two words: "Hua" (華), which originally referred to the "flowery" or "civilised" culture of the Central Plains, and "Xia" (夏), which refers to the legendary Xia Dynasty, one of the earliest recorded dynasties in Chinese history.
  - Huaxia was used to distinguish the culturally advanced and settled people of the Central Plains from the "barbarian" tribes on the fringes of ancient China. It embodies the notion of a civilised society that adhered to the values, rituals, and customs of early Chinese culture.
  - Over time, the concept of Huaxia expanded to include the people who shared this cultural identity, regardless of their specific geographic origin, creating a broader sense of a unified Chinese civilisation.
- **Formation of Chinese Identity:**
  - The idea of **Huaxia** played a crucial role in the formation of Chinese identity. It was not just an ethnic or racial concept but also a cultural one, emphasising shared language, customs, and moral values.
  - The concept helped unify various groups within the Chinese Empire, creating a sense of belonging to a single civilization. This collective identity underpinned the political unity of the Chinese state and its expansion over time.
- **Citizenship in the Huaxia Concept**
  - **Ancient Chinese Citizenship:**
  - In ancient China, the concept of citizenship was closely tied to the idea of **Huaxia**. Citizenship was less about individual rights (as in modern Western concepts) and more about belonging to the Huaxia civilisation, participating in its cultural and social life, and fulfilling one's role in the community according to Confucian principles.
  - **Merit and Social Responsibility:** Citizenship was also associated with one's ability to contribute to society, particularly through education and adherence to Confucian ethics. The idea of being a good citizen was linked to fulfilling social responsibilities, respecting authority, and contributing to the stability and prosperity of the state.
- **Evolution of Citizenship:**
  - Over time, as the Chinese Empire expanded and absorbed various ethnic groups, the idea of citizenship evolved. While Huaxia originally referred to a specific cultural and ethnic group, it gradually became more inclusive,

incorporating people from different backgrounds who adopted Chinese culture and accepted the authority of the Chinese state.

- This is tied to the idea of sovereignty.

- **Impact on Modern Chinese Identity**

- **National Identity:**

- The legacy of **Huaxia** continues to shape modern Chinese national identity. The idea of a shared cultural heritage and civilisation remains a cornerstone of how Chinese people see themselves and their place in the world.
- **Inclusiveness and Unity:** While the ancient concept of Huaxia was exclusive, defining itself against "barbarians," modern China has adapted the idea to promote inclusiveness and unity among the diverse ethnic groups within its borders, emphasizing a collective national identity.

- **Global Perspective:**

- In a global context, the concept of Huaxia and the historical development of Chinese citizenship offer a unique perspective on how cultural identity and statehood can be intertwined. It contrasts with Western notions of citizenship, which tend to focus more on legal rights and individual freedoms.

As a result of Sinosphere institutional development pattern it creates the following challenges towards the process of nation building.

### Conceptual Framework

**Empire vs. Nation-States:** Traditional China can be viewed as an empire rather than a nation-state. This distinction is crucial as empires typically have a hierarchical structure centred around a core region, whereas nation-states are characterized by a more horizontal organization of power.

**Core vs. Periphery:** The Chinese empire was centred around a core region—what is often considered China proper, enclosed by the Great Wall. The areas beyond this wall represent the periphery, which played a significant role in the empire's evolution.

### 2. Historical Response to Challenges

The Chinese empire's longevity and adaptability were largely a response to various historical challenges and shocks. These included invasions, internal rebellions, and significant social and economic changes.

### 3. Role of the Periphery

**Source of Change:** Changes or mutations within the empire often originated from the periphery. These areas were crucial as they were the frontlines of interaction with

non-Chinese entities and forces, often bringing new ideas, technologies, and practices that were integrated into the broader Chinese civilisation.

➔ Chinese empire caters to multiculturalism

Historical Context: Initially, the periphery referred to the frontier regions outside the Great Wall. These areas were less controlled by the central authorities and thus more susceptible to external influences and local adaptations.

#### 4. Shifts in the 19th Century

By the mid-19th century, the notion of the periphery began to shift towards China's coastal fringe. This change was driven by increased maritime trade, European colonial pressures, and the strategic importance of ports like Shanghai and Guangzhou. The coastal fringe became a new center for economic and cultural exchange, significantly influencing China's modernisation efforts and interactions with the global community.

#### **The Tributary System**

- The Tributary System was a diplomatic and political framework used by Imperial China to manage its relationships with neighboring states and peoples.
- Tributary states acknowledged the supremacy of the Chinese emperor, offered tribute, and in return received protection, trade benefits, and recognition from China.
- Tributary States:
  - Countries like Korea, Japan, Vietnam, the Ryukyu Kingdom, and various Central Asian states participated in the system.
  - These states sent regular missions to the Chinese court, offering tribute in the form of goods, art, and other valuables.
- Reciprocal Benefits:
  - Trade and Economic Exchange: Tributary states gained access to lucrative trade with China, receiving valuable Chinese goods such as silk, porcelain, and tea.
  - Military Protection: China provided military assistance to tributary states, defending them against external threats.
  - Cultural Exchange: The system facilitated the spread of Chinese culture, technology, and Confucian ideals across East Asia.
- Maintenance of Regional Order:

- The Tributary System helped maintain stability and peace in East Asia by establishing clear hierarchical relationships between China and its neighbours.
- It provided a framework for resolving disputes and managing relations without resorting to warfare.
- Spread of Chinese Influence:
  - The system allowed China to project its cultural, political, and economic influence throughout East Asia.
  - Chinese cultural practices, language, Confucian values, and administrative models were adopted by many tributary states, shaping their development.
- Diplomatic Precedent:
  - The Tributary System set a diplomatic precedent in East Asia, emphasising soft power, cultural diplomacy, and the use of rituals to manage international relations.
  - It contributed to the concept of a Sinocentric world order, with China at the centre and other states as peripheral participants.

### Legacy and Impact

- End of the Tributary System:
  - The system began to decline in the 19th century as Western powers and Japan challenged China's regional dominance.
  - The Opium Wars and subsequent treaties imposed by Western powers undermined the tributary system, leading to its eventual collapse.
- Long-Term Influence:
  - The Tributary System's emphasis on cultural diplomacy and hierarchical international relations has left a lasting impact on East Asian diplomacy.
  - Modern China's regional relationships still reflect some elements of the tributary mindset, particularly in how China views its role as a leading power in Asia.

The contestation between Huanghe culture and those deemed “barbarian” → mostly people in the north and west, and subsequently control over the Yangtze River delta. The establishment of the bureaucratic system was installed to prevent

-→ creates a political equilibrium: fixed target of revenue by the state

Due to decentralisation of governance, the state becomes an absentee landlord.

### The Political Landscape of the Indian Subcontinent

This period marks a dynamic and complex era in the history of the Indian subcontinent, characterized by the interplay of various regional powers and the influence of external empires.

### Dharmasastra

Dharmasastra is a genre of ancient Sanskrit texts that encapsulates the moral, legal, and social duties of individuals within Vedic culture. These texts serve as comprehensive guides that cover a wide array of topics including ethics, law, and social norms. Below are some key texts within the Dharmasastra tradition:

#### Laws of Manu (Manusmriti):

One of the earliest and most authoritative texts in the Dharmasastra tradition.

It details the rights, duties, laws, and code of conduct for individuals, including detailed rules for various castes and stages of life.

#### Yajnavalkya Smriti:

Provides a more concise and practical approach to laws and ethics compared to Manusmriti.

Known for its clarity and logical structure, often used in legal and judicial matters.

#### Narada Smriti:

Focuses primarily on judicial procedures and legal matters.

It is less comprehensive in scope but influential in shaping the judicial process in ancient India.

#### Apastamba Dharmasutra:

Deals with personal conduct, ritual duties, and civil law.

Includes detailed sections on Raja Dharma, which outlines the duties and responsibilities of a king.

International relations according to cultures guided by the Arthashastra (Treatise on Governance) is based on ranking relationships with external parties and sovereigns.

- ➔ Madhyama (Inter-mediate / indifferent state): Represents a state or entity that maintains a neutral or non-committal stance towards others.



- ➔ Udasina (Neutral state): A state that does not engage in conflicts or alliances and remains aloof from other states' political dynamics.
- ➔ Vijigishu (The aspiring king): Represents a state or leader aiming to expand territory or influence, often actively engaging in alliances or conflicts.
- ➔ Mitra (Ally), Ari (Enemy), and Arimitra (Enemy of enemy): These terms illustrate the complex relationships between states, highlighting allies, enemies, and the strategic positioning against a common adversary.

Caste system as we now know it underwent multiple transition:

The colonisers invented or constructed Indian social identities using categories of convenience during a period that covered roughly the 19th Century.

This was done to serve the British Indian government's own interests - primarily to create a single society with a common law that could be easily governed.

A very large, complex and regionally diverse system of faiths and social identities was simplified to a degree that probably has no parallel in world history, entirely new categories and hierarchies were created, incompatible or mismatched parts were stuffed together, new boundaries were created, and flexible boundaries hardened.

The resulting categorical system became rigid during the next century and quarter, as the made-up categories came to be associated with real rights. Religion-based electorates in British India and caste-based reservations in independent India made amorphous categories concrete. There came to be real and material consequences of belonging to one category (like Jain or Scheduled Caste) instead of another.

Categorisation, as it turned out in India, was destiny.

The vast scholarship of the last few decades allows us to make a strong case that the British colonisers wrote the first and defining draft of Indian history.

So deeply inscribed is this draft in the public imagination that it is now accepted as the truth. It is imperative that we begin to question these imagined truths.